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CHAPTER cxcii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Corporation (Sewage). [15th August 1904.] A.D. 1904.

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Glasgow Corporation (Sewage) Order Confirmation Act 1904. Short title.

A.D. 1904.

S C H E D U L E.

GLASGOW CORPORATION (SEWAGE).

Provisional Order to authorise the Corporation of the City of Glasgow to construct deviations of authorised sewers to abandon certain authorised sewers and the authorised deviation of the Renfrew Road to acquire land for sewage purposes to confirm agreements and for other purposes.

WHEREAS it is expedient that the sewer (No. 1) and the sewer (No. 7) authorised by the Glasgow Corporation (Sewage &c.) Act 1898 (herein-after referred to as "the Act of 1898") should be deviated and that the Corporation of the city of Glasgow (herein-after called "the Corporation" and "the city" respectively) should be authorised to abandon so much of the said sewer (No. 1) and sewer (No. 7) as will be rendered unnecessary by the construction of the deviations thereof by this Order authorised and to abandon the diversion of the Renfrew Road (Work No. XI.) authorised by the Act of 1898:

And whereas by the Act of 1898 the Corporation were authorised to acquire and use for sewage purposes certain lands at Braehead described in the First Schedule to that Act and have acquired the same:

And whereas it has been agreed between the Corporation and the trustees of the Clyde Navigation (herein-after referred to as "the Clyde Trustees") that the said lands at Braehead shall be exchanged for certain lands at Shieldhall belonging to the Clyde Trustees herein-after described and it is expedient that such agreement should be carried into effect and that the Corporation should be authorised to use the said lands at Shieldhall for sewage purposes:

And whereas plans and sections showing the lines and levels of the deviations of sewers and other works and the lands required or which may be taken for the purposes or under the powers of this Order and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the principal sheriff-clerk of the county of

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Lanark and with the clerk of the parish council of the parish of Govan which plans sections and books of reference are hereinafter respectively referred to as the deposited plans sections and books of reference : A.D. 1904.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Glasgow Corporation (Sewage) Order 1904. Short title
and citations.

This Order and the Glasgow Police Acts 1866 to 1903 and any other Order confirmed or Act passed during the present session relating to the police purposes of the Corporation may be cited as the Glasgow Police Acts 1866 to 1904.

This Order and the Glasgow Sewage Acts 1891 to 1903 and any other Order confirmed or Act passed during the present session relating to the Corporation sewage undertaking may be cited as the Glasgow Sewage Acts 1891 to 1904.

This Order and the Glasgow Corporation Acts 1855 to 1903 and any other Order confirmed or Act passed during the present session relating to the Corporation may be cited as the Glasgow Corporation Acts 1855 to 1904.

2. The Lands Clauses Acts are (except where expressly varied by this Order) incorporated with and form part of this Order and this Order shall be deemed to be a special Act within the meaning of those Acts. Incorporation of Lands
Clauses Acts.

3. In this Order the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and for the purposes of this Order the expressions “the promoters of the undertaking” “the commissioners” and “the company” in the incorporated Acts mean respectively the Corporation. Interpretation.

4. The following words and expressions in this Order have the meanings hereby assigned to them (that is to say):— Further interpretation.

“The city” means the city and royal burgh of Glasgow ;

“The Corporation” means the Corporation of the city ;

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- “ Sheriff ” means the sheriff of the county of Lanark and includes his substitutes ;
- “ The Act of 1891 ” means the Glasgow Police (Sewage &c.) Act 1891 ;
- “ The Act of 1896 ” means the Glasgow Corporation (Sewage) Act 1896 ;
- “ The Act of 1898 ” means the Glasgow Corporation (Sewage &c.) Act 1898 ;
- “ The Order of 1901 ” means the Glasgow Corporation (Police) Order 1901 ;
- “ The Order of 1903 ” means the Glasgow Corporation (Police) Order 1903 ;
- “ The Clyde Trustees ” means the trustees of the Clyde Navigation incorporated under the Clyde Navigation Consolidation Act 1858 ;
- “ The Lanarkshire Council ” means the county council of the county of Lanark and the district committee of the lower ward thereof for their respective interests.

Power to
execute
works and
take lands.

5. Subject to the provisions of this Order the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the deviations of sewers and works herein-after described together with all necessary and proper appliances works and conveniences incidental or subsidiary thereto and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited books of reference as may be required for that purpose and for the other purposes of this Order The deviations of sewers and works herein-before referred to are the following :—

- (1) A deviation of sewer (No. 1) authorised by section 5 of the Act of 1898 wholly in the parish of Govan in the county of Lanark commencing at a point within the inclosure numbered 178 in the parish of Govan on the $\frac{1}{2500}$ Ordnance Survey map of the said parish first edition 1894 distant 150 yards or thereabouts from the north-western corner of the said enclosure measured in a south-easterly direction and 60 yards or thereabouts from the south-western corner of the said inclosure measured in a north-westerly direction and terminating at a point within inclosure numbered 233 in the parish of Govan on the said $\frac{1}{2500}$ Ordnance Survey map of

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the said parish distant 152 yards or thereabouts from the north-western boundary of the said inclosure numbered 233 measured in a south-easterly direction and 10 yards or thereabouts from the southern boundary of the said inclosure measured in a north-easterly direction; A.D. 1904.

- (2) A deviation of sewer (No. 7) authorised by section 5 of the Act of 1898 wholly in the parish of Govan in the county of Lanark commencing in Renfrew Road at the western boundary of the burgh of Govan and terminating at a point within the said enclosure numbered 233 in the parish of Govan on the said $\frac{1}{2500}$ Ordnance Survey map of the said parish distant 169 yards or thereabouts from the north-western boundary of the said inclosure numbered 233 measured in a south-easterly direction and 10 yards or thereabouts from the southern boundary of the said inclosure measured in a north-easterly direction.

6. The Corporation shall abandon the construction of—

- (1) So much of the sewer (No. 1) and of the sewer (No. 7) authorised by the Act of 1898 as is rendered unnecessary by the construction of the deviations of the said sewer (No. 1) and sewer (No. 7) by this Order authorised;
- (2) The diversion of the Renfrew Road (Work No. XI.) authorised by the Act of 1898.

Corporation may abandon portions of sewers (No. 1) and (No. 7) and the diversion of Renfrew Road authorised by Act of 1898.

7. The abandonment by the Corporation under the authority of this Order of the portion of sewer (No. 1) and of sewer (No. 7) and of the diversion of Renfrew Road authorised by the Act of 1898 shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Corporation on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out the line of work and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Corporation to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof.

Compensation for damage to land by entry &c. for purposes of portions of sewers and road diversion abandoned.

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Compensation to be made in respect of portions of sewers and road diversion abandoned.

8. Where before the passing of the Act confirming this Order any contract has been entered into or notice given by the Corporation for the purchasing of any land or wayleave for the purposes of or in relation to any portion of the sewer (No. 1) and of the sewer (No. 7) and of the diversion of the Renfrew Road authorised by the Act of 1898 and authorised to be abandoned by this Order the Corporation shall be discharged from all liability to purchase or to complete the purchase of any such land or wayleave but notwithstanding full compensation shall be made by the Corporation to the owners and occupiers or other persons interested in such land or wayleave for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts as varied by the Glasgow Corporation (Police) Order 1904 and this Order for determining the amount and application of compensation paid for lands taken under the provisions thereof.

For protection of Glasgow and Paisley Joint Railway.

9. Notwithstanding anything in this Order contained the Corporation shall not without the consent in writing of the Caledonian Railway Company and the Glasgow and South Western Railway Company as owners of the Glasgow and Paisley Joint Railway enter upon take or use the property or any part thereof numbered eight on the deposited plans in the parish of Govan so far as the same is the property of the companies.

Saving for Glasgow and Renfrew District Railway Company.

10. Notwithstanding anything contained in section 53 (Extension of time for purchase of lands for Glasgow and Renfrew District Railway) of the Caledonian Railway Act 1902 the Glasgow and Renfrew District Railway Company shall not be bound to obtain the consent of the Corporation to acquire any portion of the lands numbered 6 7 8 9 10 13 16 and 17 in the parish of Govan and county of Lanark on the deposited plans referred to in the Glasgow and Renfrew District Railway Act 1897 and the said section is hereby amended to that extent.

For protection of Lanarkshire County Council.

11. For the protection of the Lanarkshire Council and of the Lanarkshire Areas Nos. 2 and 3 described in the Third Schedule to the Act of 1898 except so much of Area No. 2 as is now included in the burgh of Govan the following provisions shall notwithstanding anything contained in this Order and unless otherwise agreed between the Corporation and the Lanarkshire

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Council have effect and shall be binding on the Corporation and A.D. 1904.
the Lanarkshire Council viz. :—

(1) The Corporation shall construct and maintain in the Govan and Renfrew Road as existing or as it may hereafter be deviated under the authority of Parliament or otherwise or on a suitable line to be mutually adjusted (provided always that the Lanarkshire Council and their constituents shall have the same rights of access and equal facilities for making connexions with the sewer or sewers after mentioned in whatever line they may be laid as if they had been laid in the said Govan and Renfrew Road) a sewer or sewers (A) from the west side of the Glasgow and Renfrew District Railway to the point of discharge into the sewage purification works which the Corporation are by section 12 of this Order authorised to construct upon the lands at Shieldhall described in that section (herein-after called "the said purification works") and (B) from the point where the said sewer (No. 7) is diverted from the said Govan and Renfrew Road westwards to the said point of discharge such sewers to be of such dimensions depth gradient and construction as will drain efficiently into the said purification works the whole sewage which the aforesaid Areas No. 2 and No. 3 so far as within the Lanarkshire Council's jurisdiction when fully developed can or may discharge and for this purpose the Lanarkshire Council shall give the Corporation free of charge wayleaves in the said road or diverted road and such reasonable facilities as they can competently give as the highway authority for the construction of the said sewers (A) and (B) :

(2) The said sewers shall be constructed in accordance with plans sections working drawings and specifications showing the works proposed their position relative connexions and the manner in which the whole are to be executed to be submitted to and approved of by the Lanarkshire Council previously to the works being commenced or in the event of difference of opinion (including difference as to the sufficiency of the sewers to carry and discharge the whole eventual sewage of the said areas) between the Corporation and the

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Lanarkshire Council by an arbiter to be appointed as in this section mentioned. Provided that if the Lanarkshire Council do not within fourteen days after delivery of the said plans sections working drawings and specifications to them or their clerk intimate objection thereto the Corporation may thereafter proceed to execute the said works in accordance with the said plans working drawings and specifications :

- (3) The said sewer (B) shall be completed and the said sewer (A) shall be constructed westwards to the west boundary of the said Area No. 2 and ready for use not later than the date at which sewage purification shall be commenced at the said purification works but the Corporation shall only be bound to continue the construction of the said sewer (A) westwards from the said boundary as and when buildings are erected upon the said Area No. 3 requiring sewerage accommodation but until the said sewer (A) has been completed the sewage purification assessment referred to in section 38 (As to assessments in Lanarkshire areas) of the Act of 1898 shall not be imposed upon nor shall the provisions of section 27 (Sewage not to be discharged into Clyde Cart or their tributaries after completion of works) of that Act apply to any subjects lying to the west of the point to which the said sewer (A) shall have been constructed or to the south-west of the Glasgow and Renfrew District Railway but when the whole of the said sewers (A) and (B) shall have been constructed the provisions of the said sections 38 and 27 shall apply to the said areas Nos. 2 and 3 so far as now under the jurisdiction of the Lanarkshire Council :
- (4) The rights conferred by the Act of 1898 with reference to the drainage of the said Lanarkshire areas into the sewers authorised by that Act shall apply and have effect with reference to the said sewers (A) and (B) and to the deviations of sewers (No. 1) and (No. 7) authorised by this Order as if such sewers and deviations had been authorised under that Act :
- (5) The provisions of the Act of 1898 for the protection of the Lanarkshire Council in the case of the construction maintenance or use of sewers or other works in or

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under roads shall apply to the said sewers (A) and (B) and to the said deviations authorised by this Order: A.D. 1904.

- (6) Nothing in this Order contained shall authorise the stopping up of or interference with the existing public right of way through or adjoining the lands which the Corporation are by this Order authorised to acquire for the purposes of the said purification works and accesses therefrom to the River Clyde :
- (7) Nothing in this Order contained shall be construed to impair any right of action in respect of nuisances at common law or under the Public Health Acts the Burgh Police Acts or under any public general statute :
- (8) Any question dispute or difference which may arise from time to time between the Corporation and the Lanarkshire Council with regard to any of the matters things rights or obligations dealt with in this section or the true intent and meaning thereof shall be determined by an arbiter to be agreed on or failing agreement to be appointed by the Board of Trade on the application of either party.

12. Subject to the provisions of this Order the Corporation may construct upon lands in this section described acquired or to be acquired by them under the powers of this Order or some part thereof (but not under the powers of this Order elsewhere) and thereafter maintain use and manage all necessary and proper erections appliances tanks reservoirs basins pumping and other engines mains buildings machinery apparatus and works for pumping receiving conveying storing filtering precipitating disinfecting using and distributing and for the chemical or other treatment of the whole or any portion of the sewage within the jurisdiction of the Corporation or of any of the local authorities mentioned in the Act of 1898 with all necessary railways sidings landing piers docks wharves and other accessory works and conveniences.

Power to construct and maintain sewage works on certain lands and works of communication with River Clyde.

The lands above referred to are—

A piece of land 27 acres or thereabouts in extent situate at Shieldhall wholly in the parish of Govan and county of Lanark and lying within the following boundary namely:—Commencing at the junction of the north-east side of Renfrew Road with the west side of the footpath

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leading to Whiteinch Ferry and proceeding thence north-westward along the north-east side of the said road to its junction with the south-eastern boundary of the inclosure numbered 310 on the said $\frac{1}{2500}$ Ordnance Survey map of the parish of Govan thence north-eastward along the south-eastern boundary of the said inclosure numbered 310 to a point on the left bank of the River Clyde 179 yards or thereabouts westward from the west end of Shieldhall Old Wharf thence in a south-easterly direction along the left bank of the River Clyde to the north end of the west side of the said footpath leading to Whiteinch Ferry thence in a southerly direction along the west side of the said footpath to the point of commencement.

The Corporation may also upon the lands acquired or to be acquired by them under the powers of this Order or on other lands adjacent thereto to be acquired by them by agreement or on the bank of the River Clyde at or near the lands before referred to construct landing piers docks wharves outfalls or any other works for the purpose of establishing communications between the works of the Corporation and the River Clyde.

For the protection of the Govan Combination Parish Council.

13. In the event of the Govan Combination Parish Council or other body coming in place thereof being injuriously affected by the proximity or use of the sewage works authorised by this Order and in the event of the said parish council or other body aforesaid requiring for sanitary reasons to remove their institutions because of the said proximity or use to a more sanitary position the Corporation shall make compensation to the said parish council or other body aforesaid for all loss or expense thereby occasioned the amount of which compensation not exceeding sixty thousand pounds shall failing agreement be settled under the provisions of the Lands Clauses Acts.

Applying provisions of Act of 1898 to sewers deviated sewers and works.

14. Subject to the provisions of this Order the provisions of the Act of 1898 shall apply to the deviations of sewer (No. 1) and of sewer (No. 7) and to the works by this Order authorised and to the incidental or subsidiary works connected therewith and to the lands herein-before authorised to be taken for the purposes of this Order in the same manner and to the like effect as if those deviations and those works had been authorised by and were being carried out and the Corporation had been authorised to enter upon

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take and use the said lands under and subject to the provisions of the Act of 1898. A.D. 1904
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15. For the purposes and during the execution of the several works by this Order authorised and in maintaining the same and subject to the provisions of this Order the Corporation may use break up or cross over or under alter or stop up temporarily any streets highways roads lanes paths quays bridges railways tramways canals passages sewers drains watercourses mill leads or mill dams sluices gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited books of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such street highway railway or tramway or the flow of water gas sewage or electricity in any such sewer drain watercourse canal or pipe or apparatus and making full compensation to all persons injuriously affected by the exercise of the powers of this section Provided that nothing in this section shall extend to authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of section fifteen of the said Act apply.

Power to
alter roads
&c. tem-
porarily.

16. The agreement between the Corporation of the first part and the Clyde Trustees of the second part as set forth in the First Schedule to this Order is hereby confirmed and made binding upon the parties thereto.

Agreement
with Clyde
Trustees
confirmed.

17. Upon the passing of the Act confirming this Order the section of the Act of 1898 of which the marginal note is "Power to maintain sewage works on certain lands and works of communication with River Clyde" is hereby repealed and the lands mentioned in the First Schedule to the Act of 1898 may (except so far as any of such lands have been acquired by the Glasgow and Renfrew District Railway Company under the Glasgow and Renfrew District Railway Act 1897) be used by the Clyde Trustees for any of the purposes connected with their undertaking.

Repeal of
section 15 of
Act of 1898
and power
to Clyde
Trustees to
use lands at
Braehead.

18. The Clyde Trustees may apply to the purposes of this Order and of the agreement contained in the First Schedule to

Power to
Clyde Trus-
tees to apply

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—
corporate
funds to
purposes of
Order.

this Order to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by virtue of the Clyde Navigation Acts 1858 to 1904 and which may not be required for the purposes to which they are by any such Acts made specially applicable.

Period for
compulsory
purchase of
lands.

19. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the passing of the Act confirming this Order.

Period for
completion
of works.

20. If the deviations of sewers and works described in this Order are not completed by the twelfth day of August one thousand nine hundred and seven then at that date the powers by this Order granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Power to
make agree-
ments for
purposes of
Order.

21. The Corporation may make and carry out agreements with the Clyde Trustees the town council of Govan the Lanarkshire Council and any other persons with reference to the carrying out of any purposes of this Order not herein specially provided for.

Correction of
errors &c. in
deposited
plans and
books of
reference.

22. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Corporation after giving ten days' notice to the owners lessees and occupiers may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff-clerk of the county of Lanark and a duplicate thereof with the clerk of the parish council of the parish of Govan and such certificate and duplicate respectively shall be kept by the said sheriff-clerk and clerk of the said parish council respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected in accordance with such certificate and the Corporation may purchase take and use the lands and execute the works in accordance with such certificate.

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23. With respect to any lands which the Corporation are by this Order authorised to enter upon take or use for the purposes of this Order and which are in or under the roadway pavement or footpath of any public street road or lane shown on the deposited plans and described in the deposited books of reference the Corporation shall not be required wholly to take the same or any part of the surface thereof or any cellar vault or other construction therein or thereunder but the Corporation may appropriate and use without price or consideration the soil subsoil and under-surface of the road pavement or footpath of any such street road or lane and if need be they may purchase take and use any such cellar vault or other construction and the owners of and other persons interested in any such cellar vault or other construction shall sell the same for the purposes of this Order and no such soil subsoil or under-surface cellar vault or other construction to be appropriated and used or purchased as aforesaid shall be deemed part of a house or other building or manufactory within the meaning of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 Provided always that subject to the express provisions of this Order the Corporation shall not permanently take or use any public street road or lane but the subsoil only thereof.

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 Corporation may acquire servitudes only under streets or roads and may purchase cellars &c.

24. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Power to take servitudes &c. by agreement.

25. Whereas in the construction of the deviations of sewers and of the works hereby authorised or otherwise in exercise of the powers of this Order it may happen that portions only of the lands and houses or other buildings shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the

Owners may be required to sell parts only of certain lands and buildings.

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Compensation for land to be settled by single arbiter.

26. In all cases of disputed compensation under any provision of this Order whereby the Corporation is entitled to acquire land compulsorily under the Lands Clauses Acts or whereby any compensation payable by the Corporation falls to be determined under the last-mentioned Acts it shall unless both parties concur in the appointment of a single arbiter in terms of the last-mentioned Acts be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall notwithstanding anything in those Acts determine the amount of the expenses in the arbitration and such determination shall be final The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland The expression "land" in this section includes water and any right or servitude to or over land or water.

Works to form one undertaking with those authorised by Acts of 1891 1896 and 1898 and Orders of 1901 and 1903.

27. Subject to the provisions of this Order the works authorised by this Order shall form one undertaking with the works authorised by the Acts of 1891 1896 and 1898 and the Orders of 1901 and 1903.

Application of money borrowed.

28. Money borrowed by the Corporation under the Act of 1891 as amended by the Acts of 1896 and 1898 the Order of 1903 and by this Order shall be applied in payment first of the costs charges and expenses incurred by the Corporation prelimi-

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nary and incidental to the preparing applying for obtaining and confirming of this Order or otherwise in relation thereto and secondly in and for the purchase of and payment for lands and the construction of the works authorised by this Order and in carrying the Acts of 1891 1896 and 1898 the Order of 1901 the Order of 1903 and this Order into execution and not otherwise but they shall not apply any money borrowed or any other moneys of the nature of capital to the maintenance and management of works or to other purposes to which capital is not properly applicable.

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29. The Corporation shall not under the powers of this Order purchase or acquire ten or more houses which on the fifteenth day of April last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of April but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

If the Corporation acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

30. Nothing herein contained shall authorise the Corporation or the Clyde Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of his Crown and under the management of the

Saving
rights of
Crown.

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A.D. 1904. Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Works below
high-water
mark not to
be com-
menced
without con-
sent of Board
of Trade.

31. The Corporation or the Clyde Trustees as the case may be shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation or the Clyde Trustees as the case may be shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation or the Clyde Trustees as the case may be and the amount of such costs and charges shall be a debt due from the Corporation or the Clyde Trustees as the case may be to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

32. If at any time the Board of Trade deems it expedient for the purposes of this Order to order a survey and examination of a work constructed by the Corporation or the Clyde Trustees on in over through or across tidal lands or tidal water or of the intended site of any such work the Corporation or the Clyde Trustees as the case may be shall defray the expenses of the survey and examination and the amount thereof shall be a debt due from the Corporation or the Clyde Trustees as the case may be to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of works
abandoned
or decayed.

33. If a work constructed by the Corporation or the Clyde Trustees on in over through or across tidal lands or tidal water

is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation or the Clyde Trustees as the case may be and the amount of such expense shall be a debt due from the Corporation or the Clyde Trustees as the case may be to the Crown and be recoverable as a Crown debt or summarily. A.D. 1904.

34. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and if paid out of borrowed money shall be repaid out of revenue within five years from the passing of the Act confirming this Order. Expenses of Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

MINUTE OF AGREEMENT between the CORPORATION OF THE CITY OF GLASGOW (herein-after called "the Corporation") of the first part and the TRUSTEES OF THE CLYDE NAVIGATION incorporated under the Clyde Navigation Acts (herein-after called "the Trustees") of the second part.

WHEREAS it is for the advantage of the undertaking of the Trustees as well as in the public interest that the proposed sewage works authorised by the Glasgow Corporation (Sewage &c.) Act 1898 (herein-after called "the Act of 1898") to be constructed on a site belonging to the Corporation at Braehead in the parishes of Govan and Renfrew should be transferred to a site belonging to the Trustees at Shieldhall in the parish of Govan on the terms and conditions herein contained and that the parliamentary powers necessary for that purpose should be applied for :

Therefore it is contracted and agreed between the parties hereto as follows viz. :—

First—The Corporation shall promote a Provisional Order seeking power to transfer the said sewage works from the lands of Braehead described in the First Schedule to the Act of 1898 to the lands of Shieldhall belonging to the Trustees delineated and coloured red on the plan annexed and signed as relative hereto and to construct the necessary deviations of sewers Nos. 1 and 7 authorised by the Act of 1898.

[Ch. cxcii.] *Glasgow Corporation (Sewage) Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904.

Second—The said land at Shieldhall shall be substituted for the said land at Braehead and the Trustees shall accordingly dispoise and convey to the Corporation that area of land situated at Shieldhall to the north of the Glasgow and Renfrew Road and to the south of and 150 feet distant from the River Clyde extending to 23·20 acres or thereby which is delineated and coloured red on the said plan and the Corporation shall relinquish in favour of the Trustees all rights and interests which the Corporation may have or possess under the declaration of trust by David Richmond and John Ure dated 21st February 1898 with reference to the ground at Braehead and Shiels therein described and the memorandum of agreement as to the same ground between the Corporation and the Trustees and the said David Richmond and John Ure dated 3rd May 1898 and both registered in the books of Council and Session 29th December 1900 in those portions of the lands of Braehead and Shiels specified in the said declaration of trust and memorandum of agreement situated on the north and south sides of the Glasgow and Renfrew Road and to the south of the River Clyde extending to 24·077 acres or thereby as delineated and coloured blue on the said plan.

Third—The Trustees shall relieve the Corporation of all obligations incumbent upon the Corporation in connexion with the said portions of land at Braehead and Shiels and shall also take over and be vested in any claims which the Corporation may have against the Glasgow and Renfrew District Railway Company and others in connexion therewith and shall free and relieve the Corporation of any claims which that Company and others may have against the Corporation in connexion therewith.

Fourth—The Corporation shall relieve the Trustees of all obligations incumbent upon the Trustees in connexion with the land at Shieldhall to be transferred to the Corporation including the proportion of feu-duties teinds and public burdens effeiring thereto and the Trustees shall have right to hold and use the said land at Braehead for the purposes of their undertaking.

Fifth—The Corporation shall transfer to the Trustees the strip of land along the east side of the Glasgow and Renfrew District Railway acquired by the Corporation from the trustees of the deceased John Hinshelwood of Ibrox as a site for Sewer No. 1 authorised by the Act of 1898 and the Trustees shall on the confirmation of the Order confirming this agreement repay to the Corporation the price paid by them for the said strip of land and the legal expenses in connexion with its acquisition under deduction of any sum due by the Corporation to the Trustees under the before-mentioned memorandum of agreement.

Sixth—The Corporation shall be entitled to a berth to be permanently appropriated to them ex adverso of the said sewage works at Shieldhall for loading and unloading their sludge barges and other vessels to be used by them for the purposes of and in connexion with the said sewage works subject to the following conditions :—

- (1) The Trustees shall at their own cost provide or erect on the site at the eastmost portion of their lands at Shieldhall shown by red lines on the plan annexed and signed as relative hereto a wharf

[4 EDW. 7.] *Glasgow Corporation (Sewage) Order* [Ch. cxcii.]
Confirmation Act, 1904.

not exceeding 250 feet in length for this purpose and shall execute whatever dredging may be necessary to provide sufficient depth of water at the said wharf; A.D. 1904.

- (2) The Trustees shall free and relieve the Corporation of the usual statutory rates exigible upon vessels and materials in respect of the vessels berthing and materials loaded and discharged at the said wharf for the purposes of the said sewage works in accordance with the provisions of section 46 of the Glasgow Corporation (Sewage &c.) Act 1898. The Corporation shall pay to the Trustees an annual sum to be agreed upon or failing agreement to be fixed by arbitration as herein-after provided to cover the annual charges for interest on the cost of the wharf so used by the Corporation (including in said cost the cost of the original dredging of the said wharf) and for maintaining the wharf;
- (3) The Corporation shall so carry on their work at the said wharf and shall so navigate their vessels as not to interfere with the navigation of the river and harbour and their vessels shall be subject to the byelaws and regulations applicable to the harbour and river and shall comply with the directions of the harbour master and his deputed in the same way as other vessels berthed in and navigating the harbour and river.

Seventh—The Corporation shall have right at their cost to place such pipes and ducts as may be necessary to convey the effluent from the sewage works at Shieldhall to the river and the sludge and other materials from the said works to the barges and other vessels lying at the said wharf under so much of the strip of ground belonging to the Trustees lying between the northern boundary of said sewage works at Shieldhall and the south bank of the River Clyde coloured green on the plan annexed and signed as relative hereto as may be necessary for that purpose and the Corporation may so far as necessary for carrying on their work at the said wharf use the surface of said ground for the passage of persons and materials between the said sewage works and the wharf. Provided that those pipes and ducts shall be so laid and constructed and the right of passage shall be so used and regulated as not to interfere with the use of the surface of the said strip of ground for railways tramways roads quays wharves and other purposes of the Trustees.

The Corporation shall construct at their own cost the outfall for the effluent and pipes and ducts for the sludge from the said works and shall supply and maintain all the labour and appliances required for loading and unloading their vessels and superintending their work at the wharf and shall undertake full responsibility therefor and free and relieve the Trustees of all claims arising in connexion with the works carried on by the Corporation. The sludge shall be loaded by means of pipes led under the wharf.

Eighth—The works of the Corporation so far as affecting the undertaking of the Trustees shall be carried out to the reasonable satisfaction of the engineer of the Trustees for the time being in accordance with plans to be submitted to and reasonably approved of by him.

[Ch. cxcii.] *Glasgow Corporation (Sewage) Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.

Ninth—Whereas the substitution of the site for the said sewage works at Shieldhall for that at Braehead will reduce the length of the sewers Nos. 1 and 7 leading thereto and may result in the reduction in the cost of works but it has been agreed that in the event of such substitution causing additional cost in the construction of works including as part of such cost the liability (if any) which may accrue to the Corporation under the section of the Order confirming this agreement of which the marginal note is "For the protection of the Govan Combination Parish Council" the Trustees shall free and relieve the Corporation of such additional cost Therefore it is agreed as follows:—

Upon the completion of the said sewage works at Shieldhall and of the intercepting sewers leading thereto there shall be an accounting between the Corporation and the Trustees in order to ascertain whether any and if so what additional cost has been incurred by the Corporation in constructing the said sewage works at Shieldhall and the intercepting sewers leading thereto (including the cost of lands and wayleaves acquired by the Corporation for Sewer No. 1 and abandoned less any sums received by them therefor) as compared with the cost which would have been incurred if the Corporation had instead of such works carried out and constructed the sewage works at Braehead and the intercepting sewers leading thereto authorised by the Act of 1898 The costs of and incident to the promotion of the Provisional Order authorising the substitution of the Shieldhall site for the Braehead site and the other incidental works and the liability (if any) which may accrue to the Corporation under the said section of the said Order of which the marginal note is "For the protection of the Govan Combination Parish Council" shall be dealt with as part of the cost of constructing the new works at Shieldhall The additional cost if any to be so ascertained shall be determined jointly by the city engineer and the engineer to the Trustees and in the event of their failing to agree the determination of such additional cost shall be devolved upon Sir Benjamin Baker K.C.B. Civil Engineer London whom failing of an arbiter to be mutually agreed on or failing agreement to be appointed on the application of either party by the Secretary for Scotland whose determination shall be final In the event of it being found that any additional cost has been incurred the additional cost as so ascertained and determined shall thereupon be paid by the Trustees to the Corporation with interest on the amount of the additional cost as from the date on which the additional cost may be incurred and that at the rate paid on borrowed money by the Corporation during the period from the date of incurring such additional cost until payment.

Tenth—In the event of any difference arising between the parties hereto with regard to this agreement or the implement thereof or with regard to the clauses of the intended Provisional Order such difference shall except as provided in the immediately preceding article be determined by the said Sir Benjamin Baker as sole arbiter whom failing by the arbiter to be appointed as provided in the immediately preceding article whose decision shall be final and binding on the parties hereto.

[4 EDW. 7.] *Glasgow Corporation (Sewage) Order* [Ch. cxcii.]
Confirmation Act, 1904.

Eleventh—This agreement shall be scheduled to and confirmed by the said intended Provisional Order and shall be subject to such alterations as may be made therein during the progress of the Provisional Order but if any material alteration be so made in it it shall be competent to either party thereto to withdraw the same. A.D. 1904.

IN WITNESS WHEREOF these presents typewritten on this and the six preceding pages of stamped paper are together with the relative plan hereto annexed executed in duplicate all at Glasgow as follows viz. by the Corporation under their corporate and common seal and by the subscription of Peter Gordon Stewart and William Warden two of their number acting by their authority and on their behalf as authorised at a meeting of the Corporation (Police Department) and the subscription of John Lindsay Writer Glasgow and interim clerk to the Corporation (Police Department) duly authorised all on the fourth day of July in the year nineteen hundred and four before these witnesses Alexander Clarke Mackenzie and Angus Miller both clerks in the employment of the Corporation (Police Department) and by and on behalf of the Trustees by the subscription of Sir John Ure Primrose Baronet and Thomas Mason two of their number and by Thomas Riach Mackenzie their general manager and secretary and are sealed with the common seal of said Trustees all on the seventh day of the month and year last-mentioned before these witnesses William Murray Alston engineer-in-chief to the Trustees and Duncan Mackinnon Macintyre assistant to the said Thomas Riach Mackenzie.

P. G. STEWART.
WILLIAM WARDEN.
J. LINDSAY.



A. C. MACKENZIE Witness.
ANGUS MILLER Witness.

JOHN URE PRIMROSE Trustee.
THOMAS MASON Trustee.
T. R. MACKENZIE Secretary.



W. M. ALSTON Witness.
D. M. MACINTYRE Witness.

[Ch. cxcii.] *Glasgow Corporation (Sewage) Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.

THE SECOND SCHEDULE.

DESCRIBING LANDS AND PROPERTIES WHEREOF PORTIONS ONLY ARE
REQUIRED TO BE TAKEN BY THE CORPORATION.

Parish.	County.	Nos. on deposited Plans.
DEVIATION OF SEWER NO. 1.		
Govan	Lanark	1 2 3 4 5 6 7 8 9 10 and 11.

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